
9:00 a.m. Review Hearings

CAPIK VS. DEPARTMENT OF MOTOR VEHICLES

Case Number: 24CV-0205897

This matter is on calendar for review regarding status of the writ. Plaintiff filed a Supplement to Status Hearing Statement on October 23, 2024, indicating that the parties have agreed to settle this matter. However, no notice of settlement or dismissal has been filed. Today's hearing is continued to **Monday, December 9, 2024 at 9:00 a.m. in Department 64** for review regarding status of settlement. **No appearance is necessary on today's calendar.**

EDWARDS VS. UPS, ET AL.

Case Number: 24CV-0204476

This matter is on calendar for review regarding status of removal. The Court is in receipt of a "Notice of Removal of Action to United States District Court" filed in the Shasta County Superior Court on May 3, 2024. Pursuant to that notice, this Court's jurisdiction is automatically suspended. 28 USC §1446(d); *Allstate Insurance Co. v. Superior Court* (1982) 132 Cal.App.3d 670. All future hearing dates are vacated. This matter is removed from the Court's control, and no other appearances are required by the parties unless or until this matter is remanded back to state court. Plaintiff is ordered to dismiss this action when the Federal matter resolves. **No appearance is necessary on today's calendar.**

MARSHALL, ET AL. VS. SEIGMUND, ET AL.

Case Number: 23CV-0203641

This matter is on calendar for trial re-setting. The matter was previously set for trial on October 15, 2024. That date was vacated due to unavailability of the Court. **The parties are ordered to appear and provide available trial dates.**

JOHNSON VS. SAAVERDRA

Case Number: 23CV-0201564

This matter is on calendar for trial re-setting. The matter was previously set for trial on October 15, 2024. That date was vacated due to unavailability of the Court. **The parties are ordered to appear and provide available trial dates.**

NORTH MILL EQUIPMENT FINANCE LLC VS. PAYTON DAVIS TRUCKING & EQUIPMENT, INC, ET AL.

Case Number: 24CV-0205617

This matter is on calendar for confirmation of filing amended proofs of service. Amended proofs of service have been timely filed. Pursuant to its tentative ruling dated October 28, 2024, the Court GRANTS Plaintiff's Application for Writ of Possession. No proposed orders and writs have been filed. Plaintiff shall submit them for execution. **No appearance is necessary on today's calendar.**

PEOPLE OF THE STATE OF CALIFORNIA VS. \$700.00 U.S. CURRENCY, ET AL

Case Number: 24CV-0206013

This matter is on calendar for review regarding status. Real Party in Interest Martin Cortes filed a Claim Opposing Forfeiture on September 16, 2024. No Petition for Forfeiture in Rem has been

filed. **The parties are ordered to appear and provide a status of this matter and any underlying criminal mater.**

RAMSOUR VS. APPLEWOOD OPERATING COMPANY, LLC, ET AL.

Case Number: 23CV-0202797

This matter is on calendar for review regarding status of mediation and trial setting. No status statements have been filed. The previous trial date was vacated by the Court's order dated April 17, 2024. The Court has designated this matter as exempt from case disposition time standards. Plaintiff has posted jury fees but Defendants have not. Defendants are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. **The parties are ordered to appear to provide the Court with available trial dates.**

SANFILIPPO VS. WATEGA, ET AL.

Case Number: 23CV-0202899

This matter is dropped from calendar due to the filing of a Notice of Settlement. The matter is set for review regarding status of judgment/dismissal on Monday, April 28, 2025, at 9:00 am. in Department 64. **No appearance is necessary on today's calendar.**

SHANE HUGHES CONSTRUCTION, INC. VS. STEPHENS

Case Number: 23CV-0203955

This matter is on calendar for review regarding status of default. The Court notes that Plaintiff attempted to file a Request for Default, but it was rejected by the clerk on October 22, 2024. In the interest of judicial economy, this matter will be continued to permit Plaintiff time to correct any defects and file a Request for Default. Today's hearing will be continued to **Monday, December 9, 2024, at 9:00 a.m. in Department 64** for review regarding status of default. **No appearance is necessary on today's calendar.**

SOUNTHARA VS. GERMONE

Case Number: 23CV-0203666

This matter is on calendar for review regarding trial setting. The previous trial date was vacated by the Court's order dated July 31, 2024. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than May 13, 2025. Defendant has posted jury fees but Plaintiff has not. Plaintiff is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. **The parties are ordered to appear to provide the Court with available trial dates.**

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$123,260.00 U.S. CURRENCY

Case Number: 24CV-0205994

This matter is on calendar for review regarding status. A Petition for Forfeiture in Rem was filed September 12, 2024. The Court has no record of a Claim Opposing Forfeiture being filed in this case. **An appearance is necessary on today's calendar to provide the Court with a status of this matter.**